

THE REPUBLIC OF UGANDA
IN THE HIGH COURT OF UGANDA AT JINJA
(FAMILY DIVISION)
CIVIL SUIT NO.005 OF 2025

(ARISING OUT OF ADMINISTRATION CAUSE NO.26 OF 2023)

ZAABU KWEZI.....PLAINTIFF

VERSUS

1. SAMUEL MULIMBA.....DEFENDANTS

2. JOHN MUTAMBUZE

WRITTEN STATEMENT OF DEFENCE

1. Save as in as expressly admitted the defendant denies each and every allegation contained in the plaint as if the same were set forth verbatim and traversed seriatim.
2. The contents of paragraph 3 of the plaint are admitted and for the purpose of this suit, the defendant's address is M/S J&N ADVOCATES P.O BOX 2257 BEAMTEKS PLAZA, 2ND FLOOR, KAMPALA UGANDA.
3. In reply to the contents of paragraph 4(a) (b) of the plaint the defendant shall aver and content that the said allegation is misplaced and the plaintiff shall be put to strict proof thereof.
4. The defendant denies and opposes the contents of paragraph 4(c) and (d) and shall aver and contend that the said land conveyance was proper.
5. The defendant also denies the contents of paragraph 4(h) (i) and shall aver and contend that the said transaction was proper and conducted under good faith. (A COPY OF THE SALES agreement is hereto attached and marked annexure A)
6. The defendant admits the contents of paragraph 4(e) and shall further aver and contend that indeed that he acquired land situated at Busiro Block 336 Plot 445 land at Lyamutwe.

7. Paragraph 4(h) of the plaint is also denied and the defendant contents that his actions were in no way responsible for the plaintiff's inconvenience for which he seeks general damages.
8. In reply to paragraph 5(i) the plaintiff did due diligence before entering in to a transaction with the 1st defendant **(a copy of the search report is hereto attached and marked annexure B)**
9. Paragraph 5 (j) is admitted cause the land is in the names of JOHN MUTAMBUZE
10. The defendant also refuses to adhere to the prayers in paragraph (c), (d), and (e) of the plaint and shall aver and contend that he acquired a good title given that the transaction was conducted in good faith.

WHEREFORE the defendant prays that the suit is a waste of courts specious time and should be dismissed with costs.

Dated at Jinja this ...17th.....day of...March.....2025.

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COUNSEL FOR THE DEFENDANT.

Summary of evidence.

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SUMMARY OF EVIDENCE

The defendant shall adduce evidence to the effect that he was not a privy to fraud committed by the first defendant.

LISTS OF DOCUMENTS

1. Search letter to the land office of Waikiso.
2. Search report availed by the same office.
3. Certified copy of Samuel Mulimba's letters of Administration from the High Court of Jinja.
4. Sale agreement between me and Samuel Mulimba.
5. Others with the leave of this court.

LISTS OF WITNESSES.

- 1.Fred Mawano
2. Saidat Mutuuze

3. Others will be with the leave of this court.

LIST OF AUTHORITIES.

1. The Constitution of the Republic of Uganda 1995.

2. The Succession Act Cap 268.

3. Civil Procedure Act Cap 282.

4. Civil Procedure Rules S.I-71-1.

5. Others with the leave of this court.

Dated at Jinja this 17TH day of ...March.....2025.

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COUNSEL FOR THE DEFENDANT.

Drawn and Filed by:
M/S J&N ADVOCATES
P.O BOX 2257 BEAMTEKS PLAZA, 2ND FLOOR
KAMPALA, UGANDA.